THE STATE

Versus

TATENDA AZVIENZANI

HIGH COURT OF ZIMBAB WE
MUTEVEDZI & NDUNA JJ
BULAWAYO, 8 June 2026

Criminal review judgment

MUTEVEDZI J: These proceedings were placed before me on automatic review in terms of s 57 of the Magistrates Court Act [*Chapter 7:10*] ("the MCA").

[1] Tatenda Azvienzani ("the offender") was convicted on his own plea of guilty of theft of trust property as defined in s113 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the CODE"). The allegations were that during the period extending from 11 May 2026 to 16 May 2026 at Discoms Shop 51, Corner Lobengula Street and 6th Avenue, Bulawayo, the offender, having been entrusted with money amounting to US$958.00 and ZAR814.00 for safekeeping and subsequent delivery on demand, unlawfully converted the money to his own use.

[2] Upon conviction, the trial court sentenced the offender to three years' imprisonment Of that term, one year imprisonment was suspended on condition of future good behaviour and whilst another year was suspended on condition of restitution, leaving the offender to serve an effective 12 months imprisonment.

[3] The conviction of the offender raises no challenges. I therefore confirm it as being in accordance with real and substantial justice. The sentence imposed, however warrants my interference. In his sentencing judgment, the trial magistrate justified his imposition of the unquestionably harsh and illogical penalty in the following words:

> "Aggravatory is the nature of offence offender stands convicted of. Theft remains a prevalent offence in our area of jurisdiction and deserving of censure by the courts. Offender stole a substantial amount of money and victim has not yet been restituted. Offender held a position of trust and betrayed that trust as a brother of the victim.

> The aggravatory factors outweigh the mitigatory ones. I found the presumptive sentence too harsh. However, offender cannot go unpunished. I found that a reasonable prison term of imprisonment will meet justice of this case."

[4] The above reasoning demonstrates that the trial magistrate never properly applied his/her mind to the appropriateness of a non-custodial sentence. There is no indication from the record as to how he arrived at the decision that a custodial sentence was warranted in the circumstances. There was no meaningful consideration of alternative sentencing options, notwithstanding the offender's personal circumstances and the objectives of sentencing. Such an approach has long been discouraged by the courts, which have increasingly embraced restorative and rehabilitative justice, particularly in cases involving first offenders and where the interests of society can be adequately served without resorting to imprisonment.

[5] Whilst it is true that theft of trust property is generally reprehensible because it involves a breach of confidence reposed in the offender, sentencing remains an individualized process. A court must strike a proper balance between the interests of society, the gravity of the offence and the personal circumstances of the offender. See *S* v *Zinn* (2) SA 537 (A) at 540G. The same approach was adopted in *S* v *Rabie* 1975 (4) SA 855 (A) at 862G-H.

[6] In the instant case, the offender is a first timer. He pleaded guilty at the earliest opportunity, thereby demonstrating remorse and saving the court's time and resources. There is nothing to suggest that he was a habitual offender or that he was beyond rehabilitation. His status as a first offender is a significant mitigating factor which entitled him to greater leniency than a repeat offender. The courts have repeatedly held that imprisonment should not be lightly imposed on a first offender unless the circumstances of the case render such a course unavoidable. See the cases of S v *Chawanda* 1996 (2) ZLR 8 (H). In *S* v *Zulu* 2003 (1) ZLR 529 (H); *S* v *Shariwa* 2003 (1) ZLR 314 (H) both of which stressed that undue emphasis on deterrence may result in sentences of ever-increasing severity and the principle that punishment should fit the criminal as well as the crime, be fair to the state and to the offender and be blended with a measure of mercy. The sentence must not have the effect of breaking the offender.

[7] The amount involved, whilst not insignificant, was not so substantial as to warrant immediate incarceration in the circumstances of this case. The record further reveals that restitution was both possible and desirable. Indeed, the trial court itself recognised this by suspending a portion of the sentence on condition of restitution. This was a clear indication that compensation of the

complainant and rehabilitation of the offender were achievable sentencing objectives. Where restitution can be achieved and the offender is a suitable candidate for rehabilitation, the objectives of punishment can often be met without resorting to effective imprisonment.

[8] In my view, the effective custodial sentence of one year imprisonment overemphasized the punitive and deterrent aspects of sentencing at the expense of rehabilitation and restitution. Cases abound where offenders stole amounts running into tens of thousands of dollars but the courts still found it undesirable to punish them through effective imprisonment. Once it decided to leave the offender with 12 months imprisonment, the trial court was duty bound to seriously consider the imposition of a non-custodial penalty such as community service. It didn't adequately demonstrate why that was not suitable. That obviously constitutes a misdirection on the part of the sentencing magistrate. I am therefore constrained to interfere with the magistrate's sentencing discretion which I am convinced was exercised injudiciously. A prison term wholly suspended on appropriate conditions can still adequately mark the court's disapproval of the conduct, ensure compensation of the complainant and provide a powerful incentive for the offender to reform.

[9] Accordingly, the sentence imposed by the court *a quo* cannot stand. It is set aside and I make substituted with the following:

a. The offender is sentenced to: -

"24 months' imprisonment, of which 12 months imprisonment is suspended for five years on condition that during that period he does not commit any offence involving dishonesty for which upon conviction he is sentenced to imprisonment without the option of a fine.

The remaining 12 months imprisonment is suspended on condition the offender restitutes the complainant the sum of US$958.00 and ZAR814.00 through the Assistant Clerk of Court, Bulawayo Magistrate Court on or before 30.06.26."

b. The Registrar of the High Court Bulawayo, is ordered to issue a warrant for the liberation of the offender forthwith.

MUTEVEDZI J……

NDUNA J……Agrees